Administrative Procedures for Judge Alicia Carothers

Communication

1. Method
   a. **Do NOT call the judge's office to request hearing time or to inquire as to the status of a proposed pending order.**
   b. All communications to the judicial office must be submitted by e-mail to PeavlerS@jud14.flcourts.org. The subject line must contain the case number including the county code, case name, and relevant matter (e.g., 01-2024-CC-001234-A: State v. Doe – 2-Hour Hearing Requested).

2. Ex Parte
   a. All communications with the judicial office must comply with Canon 3 of the Code of Judicial Conduct, which prohibits a judge from initiating, permitting, or considering ex parte communications and from considering other communications outside the presence of the parties concerning a pending or impending proceeding, unless authorized by law. All parties must be copied on any e-mail directed to the judicial office, unless an ex parte communication is authorized by law.

3. Unsolicited
   a. Unsolicited communications from non-parties will not be considered by the Court. Parties may only contact the judicial office in accordance with these practices and procedures.

Hearing Time

1. Scheduling

   a. The Judge's scheduling calendar is not available online. Hearing requests must be made in accordance with Paragraph 1(a) above and have a copy of the motion(s) attached to the email.
   b. The Judge's office does not hold hearing dates. A hearing is not scheduled on the Court's calendar unless you receive confirmation from the judicial assistant.
   c. Ensure accuracy in the amount of time needed for the hearing. The Court will not extend hearing time if the parties did not request enough time and the matter will be continued to a future hearing date.
   d. The judicial assistant will "reply all" to the email with available dates, times and instructions. **NOTE: Bay County is in the central time zone**.
   e. In the event counsel cannot agree on a mutually convenient date and time for the hearing from the dates and times provided, **the Court may unilaterally set the matter for hearing**

or alternatively enter an order on the matter without hearing. If the Court unilaterally sets the matter for hearing, the hearing cannot be canceled without a Court order.

f. If the parties resolve the issue prior to the Court-scheduled hearing, they shall submit an agreed upon proposed order more than one (1) business day prior to hearing date to avoid the requirement for appearance at the Court-scheduled hearing. Accordingly, to the extent possible, counsel should seek another attorney from their office to cover a hearing to avoid either having no choice in the date and time of a hearing or waiving a hearing on the matter.
g. Only email the judicial assistant to request dates and confirm the hearing date. Do not include the judicial assistant in email chains between counsel and/or staff to clear dates (or anything else).
h. If a *pro se* party is involved in the case, an attempt should be made to coordinate the hearing date and time with the *pro se* party. If counsel receives no response to an initial attempt to coordinate with the *pro se* party after two (2) business days, counsel may unilaterally set the hearing.

2. Notices
   a. DO NOT file a notice of hearing before receiving a confirmation email from the judicial assistant confirming that the hearing has been set.
   b. Email the judicial assistant a copy of all notices for hearing once filed.
   c. Any motions noticed, but not specifically scheduled with the judicial assistant, will not be heard.

3. Additional Motions
   a. Additional motions cannot be piggybacked on a previously scheduled hearing time without being cleared with the judicial assistant and opposing counsel, and such motions may only potentially be added if sufficient time has been reserved. Do not prepare and file a notice of the added motion until receipt of the judicial assistant's confirmation.
   b. Notice Content:
      i. Physical Address: 300 E. 4th Street, Panama City, FL 32401. There is no room number – just list as Judge Carothers' Chambers.
      ii. Zoom: Meeting ID: 469 014 0088
   c. The parties may stipulate to having a motion decided without the necessity of a hearing. If such is the case, the movant shall include at least a brief memorandum of law as part of the motion being filed or as a supplemental filing on the motion. Thereafter, the nonmovant shall file a response which shall include at least a brief memorandum of law as part of the response. Upon filing of the response, the movant's counsel shall contact the judicial assistant and advise that a non-hearing motion and response have been filed and provide copies of the filed motion and response. The Court shall consider the motion and response and issue a ruling.

4. Failure to appear at a properly noticed motion hearing

a. Failure of a moving party to appear at the scheduled hearing may result in rulings being made in that party's absence, including denial of the motion, granting of relief, or other appropriate orders.

Good Faith Certification for Motions

1. For most motions (other than truly dispositive motions), the moving party is required to include a certification in the motion that movant made a "good faith attempt" to resolve the issue(s) raised in the motion with the opposing counsel or party (whether represented or pro se) prior to filing the motion. This Court's requirement of conferral is broader than that included in Rule 1.202, Florida Rules of Civil Procedure.

2. A "good faith attempt" is not satisfied by the movant sending one or two emails to the opposing counsel or party if pro se and claiming no response was received. Movant may initiate the "good faith attempt" via email. However, if no response is received, the movant shall call the opposing counsel's office or party at least twice if no response is received to an email or initial phone call before certifying that the movant has made a "good faith attempt" to resolve the issue(s) raised in the motion.

3. The judicial assistant may reject offering hearing time if a motion does not include certification of a "good faith attempt" to resolve the issue(s) in the motion prior to filing the motion.

4. The only circumstances where a "good faith attempt" certification is not required is for dispositive motions (motions to dismiss with prejudice, motions for judgment on the pleadings, motions for summary judgment, etc.), emergency motions where the movant is not able to attempt contact because of the circumstances (however, delaying filing a motion that could be filed earlier is not considered an emergency just because the deadline is approaching), and post-trial or post-judgment motions (such as motions for rehearing or reconsideration). For motions to dismiss that raise primarily technical issues which, under applicable law would likely result in the pleading party being given leave to amend, the movant shall make a "good faith attempt" to resolve the issue(s) before filing the motion (e.g., where a party omits a copy of a contract or document from the complaint in an action for breach of contract).

Setting Trials

1. Email a request for dates for both jury and non-jury trials to Judge Carothers' assistant, Sarah Peavler, and CC the opposing party. These requests should be sent to PeavlerS@jud14.flcourts.org.

2. Use Bay County case number and style of case as your subject line (e.g., 01-2024-CC-001234-A: State v. Doe – Non-Jury Trial dates requested).

3. Provide the following information in the trial request email:
   a. Attach a copy of the filed notice for trial, if done
   b. Specify whether it is a jury trial or non-jury trial
      i. If a jury trial – specify the number of days needed, exclusive of jury selection
      ii. If a non-jury trial – specify the amount of time needed. If over one day, a case management conference is needed.

4. The judicial assistant will "reply all" to the email with available dates and instructions.

5. Only email the judicial assistant to confirm the trial date selected. DO NOT include the judicial assistant in email chains between counsel and/or staff to clear dates (or anything else).

6. Once the trial date is confirmed, the Court will enter an order setting trial and pretrial dates, including discovery, disclosure, and mediation deadlines. If the parties need to adjust any of the deadlines contained in the order setting trial, such can be submitted by stipulated order and will be permitted if they do not appear to affect preparation for trial.

Zoom Instructions

1. Please be sure you have an adequate internet connection prior to logging into Zoom.

2. Upon logging in, set your Zoom user/screen name to your name or your firm's name (as opposed to a nickname or other phrase) so each user can be easily identified.

3. Counsel, parties, witnesses, court reporter, and the judge will all appear via video.

4. Video Zoom connection information is as follows:

   https://zoom.us/j/4690140088
   Meeting ID: 469 014 0088

5. Include Zoom instructions above in any notices for hearing.

6. All counsel and parties attending a hearing shall do so using video and audio.

7. As a video Zoom conference hearing is a court proceeding, counsel and any party attending a hearing should be properly attired, have their electronic device in a location where the party can be clearly seen, and behave as if appearing in person in court.

8. So that hearings can promptly start, please log into the Zoom video conference at least five (5) minutes before the hearing start time. The judge will admit you to the hearing from the waiting room. DO NOT disconnect from Zoom just because you may not be admitted right at the hearing time.

Submission of Proposed Orders

1. All proposed orders must be submitted via the e-filing portal (https://www.myflcourtaccess.com).

2. All proposed orders must include a cover letter in .pdf format. The cover letter should indicate whether the proposed order (1) has been furnished to the opposing party and (2) is agreed to by opposing counsel/party or not.

3. **Only the cover letter and proposed order** should be submitted via the e-filing portal. Copies of motions, responses, exhibits, case law, or other items should not be included with the cover letter or uploaded in the e-filing portal (see Submission of Hearing Materials, *infra*).

4. All proposed orders must be submitted in Word format. **Counsel and parties preparing orders are directed to remove any hidden formatting or codes**. Failure to remove hidden formatting may result in the order being rejected.

5. All proposed orders must be in DJCMA format. Counsel and parties should review Attorney Instructions for Successful Submissions of Proposed Orders to Judiciary.

6. Proposed orders do not need to include the addresses or email addresses of recipients of the order at the end. A copy of the signed order will be served on all counsel/parties registered for service via the e-portal.

7. If the case involves a *pro se* party who is not registered to receive filings from the e-portal, the proposed order shall include as the last paragraph (before DONE AND ORDERED) the following statement:

> **Counsel who submitted this proposed order to the Court for approval shall serve a copy of this Order on any party not registered to receive service via the Court's e-portal.**

8. Proposed final judgments shall include the following statement at the end of the proposed order:

> **Plaintiff's counsel shall serve a copy of this judgment by U.S. Mail to all parties that are not registered to receive notice via the e-portal and shall file a certificate of service.**

Any proposed order not complying with the above instructions will be rejected.

Submission of Hearing Materials
(Pleadings, Memoranda, Exhibits, Case Law)

1. If a party intends on presenting any evidence or documents (including memos and caselaw) to the Court at a hearing, the documents must be pre-marked and a copy must be served to all parties prior to the hearing no less than five (5) days before the hearing.

2. Any documentation being used or relied upon at a hearing that a party wants the Court to review and consider must be submitted at least two (2) business days prior to the date of the hearing. This includes:

    a. Exhibits
    b. Memoranda not previously filed with the clerk
    c. Copies of case law, statutes or other citations
    d. Any demonstrative aides
    e. Any other documentation that a party intends to use at the hearing

    However, additional copies of motions, memoranda already filed with the clerk or other documents which are already in the court file (unless attached to or incorporated in other filings and not easily accessible or identifiable) DO NOT need to be submitted again prior to the hearing.

3. In lieu of hard copies of hearing materials, all hearing materials should be submitted via Microsoft OneDrive drop box. The procedures for obtaining the drop box are:

    a. Any counsel or party that desires to provide hearing materials shall contact the judicial assistant and request a OneDrive drop box for the case at least two (2) business days prior to the hearing. Please be sure to include the email addresses of all parties/counsel who require access. The judicial assistant will send out an email to all parties with a link to the drop box.
    b. All parties to the motion may submit documents to the drop box.
    c. Documents submitted to the drop box must be labeled so that they can be easily identified.
    d. Any case law or other items being submitted should be uploaded as separate .pdf documents.
    e. DO NOT upload documents as a zip file/folder as the Court will be unable to access those types of files and folders.
    f. If documents being submitted include exhibits for an evidentiary hearing, please pre-mark the exhibits and identify the party intending to introduce the exhibit.
    g. **The submitting party is responsible for redacting ALL confidential information on any document that will be offered into evidence**.

4. Use of the OneDrive drop box is the preferred method to submit materials to the Court in advance of a hearing. If a party is unable to use a OneDrive drop box, materials may be submitted in hard copy format, to be mailed so that the documents are received at least two (2) business days prior to the hearing.

5. Do not email copies of hearing documents to the judicial assistant. Counsel and unrepresented parties are responsible for submitting documents needed for a hearing in accordance with these procedures.

Cancellations

1. In the event of the cancellation of a hearing *that has been requested by a party*, please notify the judicial assistant as promptly as possible to open the time for other cases and provide a copy of the Notice of Cancellation. Hearings set by the Court cannot be canceled by the parties without requesting approval to do so from the Court.

2. In the event of a settlement or dismissal of a case set for trial, please notify the judicial assistant that the matter has settled or been dismissed so it can be removed from the trial docket, even if there are still matters remaining to be concluded (filing dismissal, signing of agreed upon settlement agreement, exchange of payment, etc.). However, if a settlement is contingent upon the agreement to the form of an agreement and/or release, please wait until the language of the agreement and/or release is agreed to by all parties prior to requesting a matter be removed from the trial docket.

3. Upon receipt by the judicial assistant of the email canceling a hearing or notifying of a settlement or dismissal, the matter will be removed from the calendar.